NATIONAL COMPANY LAW TRIBUNAL

CHANDIGARH BENCH (COURT-II), CHANDIGARH

COMP.APPL/23 (CH)2025

And

CP(CAA)No.10/CHD/HRY/2024

(2nd Motion)

Under Sections 230 to 232 read with Section 66 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016

IN THE MATTER OF SCHEME OF ARRANGEMENT OF:

Haldirams Snacks Private Limited

Having its registered office at
Haldiram-Village Kherki Daula, Delhi-Jaipur Highway, Gurugram - 122001, Haryana, India
PAN: AAACH0061R
CIN: U74899HR1989PTC111536

...Petitioner No. 1 / Demerged Company No. 1

Haldiram Foods International Private Limited

Having its registered office at Haldiram-Village Kherki Daula Delhi-Jaipur Highway, Gurugram - 122001, Haryana, India
PAN: AAACH3628L
CIN: U15100HR1987PTC112505

...Petitioner No. 2 / Demerged Company No. 2

Haldiram Snacks Food Private Limited
Having its registered office at Haldiram-Village Kherki Daula Delhi-Jaipur Highway, Gurugram - 122001, Haryana, India
PAN: AAGCH6000C
CIN: U15400HR2022PTC108327

...Petitioner No. 3 / Resulting Company

Order delivered on 21.03.2025

CORAM: HON'BLE SHRI K. BISWAL, MEMBER (JUDICIAL)
HON'BLE SHRI KAUSHALENDRA KUMAR SINGH, MEMBER (TECHNICAL)

Present: -
For the Petitioner Companies: Mr. Anand Chhibbar, Senior Advocate with
Mr. Nahush Jain
For the Income Tax Department: Mr. Varun Issar
For the Regional Director / ROC: Mr. Vineet Khatri

Per: Hon'ble Shri K. Biswal, Member (Judicial)
Hon'ble Shri Kaushalendra Kumar Singh, Member (Technical)

ORDER

1. This is a joint Second Motion Petition filed by **Haldiram Snacks Private Limited** ('Demerged Company No. 1' / 'Petitioner No. 1'), **Haldiram Foods International Private Limited** ('Demerged Company No. 2' / 'Petitioner No. 2'), and **Haldiram Snacks Food Private Limited** ('Resulting Company' / 'Petitioner No. 3') (hereinafter collectively referred to as 'Petitioner Companies') under Sections 230-232 read with

Section 66 of the Companies Act, 2013 (the 'Act') and other applicable provisions of the Act read with the Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 (the 'Rules'), seeking sanction of the Scheme of Arrangement between the Petitioner Companies and their respective shareholders under Sections 230-232 read with Section 66 of the Act.

2. It is stated that all of the petitioner companies are situated in the State of Haryana. Hence, all the petitioner companies are under the jurisdiction of the National Company Law Tribunal Bench at Chandigarh.

3. The Petitioner Companies had filed their first motion application bearing CA(CAA)No.42/CHD/HRY/2023 before this Tribunal for seeking directions for dispensing with the requirement of the meeting of the Equity Shareholders of all the Petitioner Companies; and for convening the meetings of the Secured Creditors of the Petitioner No. 2 and Unsecured Creditors of the Petitioner No. 1 and 2 and based on such application, necessary directions were issued vide order dated 19.01.2024.

4. The main objectives, date of incorporation, rationale of the Scheme, authorized and paid-up share capital has been discussed in the order dated 19.01.2024. The said order further stated that since there are no Secured Creditors of the Petitioner No. 1 and no Secured and Unsecured creditors of the Petitioner No. 3, the requirement to convene their meeting as well as getting the consent does not arise.

5. The Board Resolution of the Petitioner Companies approving the Scheme of Amalgamation was passed at their respective meetings held on 15.07.2023. The copy of the same are annexed as Annexure-K, Annexure-P and Annexure-V of the Petition. The amended Scheme of Amalgamation was approved in the meeting held on 26.12.2024 by the Petitioner companies 1 and 3 and on 24.01.2025 by the Petitioner

Company 2. The copy of Board Resolutions of Petitioner Companies approving the amended Scheme are annexed as Annexure A1, A2, A3 to the COMP.APPL/23(CH)/2025. The Petitioner Companies have prayed for sanctioning of the amended Scheme which is attached as Annexure B to the COMP.APPL/23(CH)/2025.

6. Further, the directions were issued to convene the meetings of Secured Creditors of Petitioner No. 1 and Unsecured Creditors of Petitioner Nos. 1 and 2 on such date, time and venue either personally / physically or through video conferencing with facility of e-voting as may be decided by the Chairperson with the consent of Alternate Chairperson and Scrutinizer, for the reasons mentioned in the aforesaid order.

7. Vide order dated 19.01.2024, it was also directed that:

(i) Petitioner No. 1 and 2 shall publish advertisement with a gap of at least 30 days before the aforesaid meeting, indicating the day, date, place and time of the meeting along with the fact about change in registered office of the Petitioner No. 1 from Delhi to Gurugram (Haryana) on 10.05.2023 and of the Petitioner No. 2 from Mumbai (Maharashtra) to Gurugram (Haryana) on 15.06.2023 in newspapers having wide circulation in Haryana, where the registered Office of the Petitioner Companies are presently situated as well in Delhi and Maharashtra, where the registered Office of the Petitioner Company No. 1 and 2 respectively, were situated prior to shifting to Haryana, and in the newspapers namely “Financial Express” (English, Delhi NCR edition and Mumbai edition), “Dainik Bhaskar" (Hindi, Delhi NCR edition) and “Lokmat" (Marathi, Mumbai edition) and place the same on its websites, if any;

(ii) Petitioner Companies shall send notices in Form No. CAA-3 to the statutory authorities and regulators.

8. The Petitioner Companies had filed the Compliance Affidavit vide diary number 02689/01 dated 11.03.2024 in compliance of the first motion order dated 19.01.2024. The copy of certificates from Skyline Financial Services Private Limited confirming delivery of notices to Unsecured Creditors of Petitioner No. 1 and to Secured and Unsecured Creditors of the Petitioner No. 2, copy of notices published in newspapers and receipts of speed post for service of notice of meeting to the statutory authorities and sectoral regulators are annexed alongwith the affidavit. The reports of the meetings submitted by the Chairperson vide diary nos. 02689/2, 02689/3 and 02689/4 dated 28.03.2024 stated that the proposed Scheme was approved by 99.25% of Unsecured Creditors of Petitioner No. 1 and by 100% of the Secured and Unsecured Creditors of Petitioner No. 2, present and voting satisfying the requirement of majority representing three-fourths in value of the outstanding debt.

9. This Tribunal issued certain directions vide order dated 01.07.2024 and an affidavit for the compliance of the order was filed by diary no. 01059/2 dated 09.08.2024. The notice of hearing was published in “Financial Express” (English, Delhi NCR Edition and Haryana Edition) and “Jansatta” (Hindi, Haryana Edition) and “Dainik Bhaskar” (Hindi, Delhi NCR Edition) for Petitioner No. 1; and, in “Financial Express” (English, Mumbai Edition and Haryana Edition) and “Jansatta” (Hindi, Haryana Edition) and “Lokmat” (Marathi, Mumbai Edition) for Petitioner No. 2 on 01.08.2024.

10. The original copies of the newspapers are attached as Annexure B1-B4 and C1-C4 of the aforesaid affidavit. It has also been stated in the affidavit that copies of notices were served upon the (a) Central Government through the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi (b) Registrar of Companies, NCT of Delhi and Haryana (c) Official Liquidator (attached to Punjab and Haryana High Court) (d) Income Tax department through Nodal Officer- Principal Chief Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E, Chandigarh, within whose jurisdiction the respective Petitioner Companies are assessed by disclosing the PAN number of the Petitioner Companies, (e) Office of the Assistant Commissioner of Income Tax, Mumbai who has lodged a claim of outstanding dues of Petitioner No. 2 before this Tribunal. A copy of the notices along with original dispatch / acknowledgment receipt are attached as Annexure D of the aforesaid affidavit.

11. It has also been deposed in the affidavit filed vide diary no.01059/10 dated 23.10.2024 that no objection has been received from any person or stakeholder to the proposed Scheme, by the Petitioner Companies or by any of its authorised representatives or its counsel.

12. In response to the notices issued, the statutory authorities / regulators have filed their reports, which have been discussed in the subsequent paragraphs.

12.1. Registrar of Companies / Regional Director

The Regional Director (hereinafter referred to as “RD”) vide diary no.01059/5 dated 26.09.2024 filed its report enclosing therewith the report dated 09.08.2024 of the Registrar of Companies, NCT of Delhi & Haryana, New Delhi

(hereinafter referred to as "RoC") which was taken on record vide this Tribunal Order dated 27.09.2024.

i. The RD in para 10 of its report has mentioned the observations of the ROC report dated 09.08.2024 and at para 11 has mentioned the reply of the Petitioner Companies, which has been summarised in the table below:

S.No	**RD/RoC Observations**	**Petitioner Companies Response**
1.	Separate Schedule of assets and liability of the demerged undertakings are not annexed with the petition. Hence, the company maybe asked to provide them	The separate Schedule of assets and liability of the demerged undertakings were provided to the RD via email dated 20.09.2024.
2.	In case the Demerged Company no.1 and Demerged company no.02 auditor has stated in the audit report for the FY 31.03.2023, that the company has not paid the certain statutory dues on account of dispute and cases for the same are being pending before their respective authority	We hereby state that these are statutory tax demands on account of disputes which are pending with the relevant forum/ authority / appellate tribunal / courts. As per clause 10.4 of the Scheme, all Tax proceedings / appeals of whatsoever nature by or against the Demerged Company No. 1 and Demerged Company No. 2 in relation to their respective FMCG Undertakings [excluding any proceedings under the Income-tax Act, 1961], wherever identifiable, pending at and / or arising after the Appointed Date and upon Scheme coming into effect, shall be continued and / or enforced against the Resulting Company. We further state and submit that the Petitioner

		Companies will assess their liability (if any), based on the outcome of the litigation and will accordingly act once the matter is disposed of by the relevant authority respectively in accordance with law. Notwithstanding the above, we further hereby undertake on behalf of the Petitioner Companies that if any demand in relation to the above dues arises in accordance with the provision of relevant law, the Petitioner Companies shall pay off such demand as and when the claim is crystalized, subject to appropriate rights & remedies available to the Petitioner Companies under applicable law in force. Without prejudice to the above, the Petitioner Companies will not cease to exist and will have sufficient assets to discharge these liabilities, if any in future. The disputed statutory dues shall not be affected, as a result of the Scheme and continue to be enforced against the Resulting Company in so far as it relates to the respective FMCG Undertakings or against the Demerged Company.
3.	In case the Demerged Company No.1 and Demerged Company No.02 auditor No.02 has stated in the audit report for the FY 31.03.2023, that few immovable properties are not in the name of the company. Hence, the	We hereby state that in case of Demerged Company No. 1, as per the audit report for FY 31.03.2023, immovable property was appearing in the name of OSE Infrastructure Limited ("OSE"). We hereby submit that OSE was

	company may be asked to ensure the compliances of the provisions of section 187 of the Companies Act, 2013.	a wholly-owned subsidiary of the Demerged Company No. 1 and was amalgamated with the Demerged Company No. 1 pursuant to the order passed by the Regional Director, Northern Region dated August 10, 2021. The transfer of ownership (as per the records of the relevant authorities) is under process and is expected to be transferred in the near future. The copy of the order of the aforementioned Scheme of amalgamation of OSE with the Demerged Company No. 1 is enclosed for your reference. With respect to the Demerged Company No. 2, as per the audit report for FY 31.03.2023, immovable property was appearing in the name of Hariomkar Food Products Private Limited ("HFPPL"). We hereby submit that HFPPL was a 100% subsidiary of the Demerged Company No. 2 and was amalgamated with the Demerged Company No. 2 pursuant to the order passed by the Hon'ble National Company Law Tribunal, Mumbai Bench dated March 29, 2023. The transfer of ownership (as per the records of the relevant authorities) is under process and is expected to be transferred in the near future. The copy of the order of the aforementioned Scheme of amalgamation of HFPPL with the

		Demerged Company No. 2 is enclosed for your reference. Subject to the above transfers, which are procedurally pending with the relevant authorities for their order under the relevant law/ regulation, we hereby submit that the Demerged Company No. 1 and Demerged Company No. 2 are in compliance with the provisions of Section 187 of the Companies Act, 2013 ("Act") and all the properties are registered in their name. The present Scheme shall not have any impact on such procedural aspects related to the transfer of immovable properties and the Companies are and shall remain in due compliance of Section 187 of the Act.
4.	In case the Demerged Company No. 1 and Demerged Company No. 2, the auditors have stated in the audit report for the FY ended 31.03.2023, that the company has granted loans and advances to other parties. Hence, the company may be asked to ensure the compliances of the provisions of section 185 and 186 of the Companies Act, 2013.	We hereby submit on behalf of the Petitioner Companies that they have been and are in compliance of the provisions of Section 185 and 186 of the Act. Further, as per the audit report for FY 31.03.2023 of Demerged Company No. 1 and Demerged Company No. 2, the respective statutory auditors in their reports have opined that both the companies are in compliance of provisions of Section 185 / 186 of the Act.
5.	In the scheme at clause 7, it is stated that the 'existing paid up share capital of resulting company amounting of	The Resulting Company is incorporated as a wholly owned subsidiary of the Demerged Company No. 1 with a

	Rs.1,00,000 comprising of 10,000 equity shares of Rs.10 each fully shall stand cancelled without any consideration and the paid up capital shall stand reduced to the extent of face value of such equity shares cancelled' which is not clear. Hence the company may be asked to provide justification / reason to do so.	nominal capital of Rs. 1,00,000 and incorporated for the purpose of housing the consolidated FMCG businesses of the Demerged Company No. 1 and the Demerged Company No. 2. Further, as per the Scheme, in consideration for transfer and vesting of their FMCG Undertaking of the Demerged Company No. 1 and Demerged Company No. 2 respectively into the Resulting Company (a wholly owned subsidiary of the Demerged Company No.1), the Resulting Company shall issue and allot equity shares to the existing shareholders of Demerged Company No. 1 and Demerged Company No. 2 based on their share entitlement ratio as mentioned in the Scheme. Therefore, in order to achieve proportionate shareholding by the shareholders of Demerged Company No. 1 and Demerged Company No. 2, the existing nominal capital of the Resulting Company is being cancelled as an integral part of the Scheme. Thereby, the interest of the shareholders of Demerged Company No. 1 and Demerged Company No. 2 will effectively remain unchanged and the shareholders' interest / value would not be prejudicially affected / diluted. Without prejudice, there are multiple precedents of companies undertaking such reduction of nominal capital without any consideration. It is a

		common practice in several schemes for de-merger to cancel the existing shareholding of the Resulting Company so as to eliminate Holding-Wholly-owned subsidiary relationship, upon coming into effect of the Scheme and provide a streamlined structure with same set of shareholders holding the Resulting Company in line with the Share Entitlement Ratio, thereby ensuring that the interest of the shareholders of the Demerged Company No. 1 and the Demerged Company No. 2 are not prejudicially affected. The reduction of existing share capital of the Resulting Company of Rs. 1,00,000 shall be effected as an integral part of the Scheme under Section 230 to 232 read with Section 66 of the Act.

ii. The Petitioner Companies have filed their above response through an affidavit vide diary No.01059/8 dated 26.09.2024, in which it is also stated that on perusal of the RD report shows that after considering the clarifications and response given by Petitioner Companies, no further observation or comment has been made by the RD, in fact the RD report does not contain any observations at all except for the observations of ROC for which the response given by the Petitioner Companies is already reproduced in the RD report itself.

iii. In the hearing dated 02.01.2025, Mr. Vineet Khatri, Company Prosecutor appeared on behalf of the RD/ROC. After perusing the RD report and the

response filed by the Petitioner Companies, the Tribunal directed the Petitioner Companies to submit an affidavit regarding the status of transfer of the immovable properties in the name of Demerged Company No.1 & 2 and also clarify whether any of the above assets are getting transferred to the Resulting Company in the present Scheme and that the reduction of the share capital is in compliance of Section 66 of the Companies Act, 2013. Further, the Petitioner Companies were directed to furnish, copy of audited accounts for the year ended 31.03.2024, to the office of RD / ROC and directed RD / ROC to furnish their revised view based on the above audited accounts on compliance of Section 185 and 186 of the Companies Act, 2013.

iv. The affidavit was filed by the Petitioner Companies vide diary no. 01059/12 dated 16.01.2025, was taken on record by this Tribunal vide order dated 12.02.2025.

v. RD vide diary no. 01059/13 dated 12.02.2025 filed its additional affidavit as directed by the order dated 02.01.2025. Further, on perusal of the audited accounts submitted by the Petitioner Companies and information available, RD / ROC has submitted that there is no adverse observation against the Scheme.

vi. Thus, the RD / ROC has made no adverse observation with regard to the proposed Scheme.

12.2. Income tax department

The Income Tax Department (hereinafter referred to as the "ITD") filed its report for the Petitioner No. 3 vide diary no. 01059/3 dated 08.08.2024, which was taken on record vide this Tribunal Order dated 14.08.2024. Further,

reports pertaining to Petitioner No. 1 and 2 were filed vide diary no. 01059/6 dated 26.09.2024 and 01059/4 dated 22.08.2024 and which was taken on record vide this Tribunal Order dated 27.09.2024.

i. The observations in the ITD reports have been shown in table below:

ii. <u>In the case of Petitioner No. 1</u>

<table>
<tr><td></td><td>Income Tax Act, 1961</td><td>AY 2014-15
AY 2015-16
AY 2018-19
AY 2019-20
AY 2020-21</td></tr>
<tr><td>4.</td><td>Details of tax demand pending for recovery from applicant companies

(*Specify year wise amount outstanding)</td><td>Details of tax demand pending for recovery from M/s. Haldirams Snacks Private Limited(PAN: AAACH0061R)
<table><tr><th>S.No.</th><th>AY</th><th>Demand section</th><th>Demand outstanding(I Rs.)</th></tr><tr><td>1.</td><td>2019-20</td><td>153C</td><td>4618925/-</td></tr><tr><td>2.</td><td>2014-15</td><td>153C</td><td>1,80,431/-</td></tr><tr><td>3.</td><td>2020-21</td><td>153C</td><td>26,99,75,030/-</td></tr></table></td></tr>
<tr><td>5.</td><td>Whether any significant information received from NMS/AIR etc.</td><td>As per the system, no such information has been received.</td></tr>
<tr><td>6.</td><td>Details of pendency of investigation/inquiry proceedings, if any.</td><td>As per the system, nosuch information regarding any investigation/enquiry has been observed/received.</td></tr>
<tr><td>7.</td><td>Whether any proceedings are contemplated any provisions of the IT Act.</td><td>As per the system, Penalty proceeding are pending for the following AYs
AY 2018-19 (u/s 270A)
AY 2019-20 (u/s 270A)
AY 2020-21 (u/s 270A and u/s 271AAC)</td></tr>
<tr><td>8.</td><td>Details of ITRs filed by the company.</td><td><table><tr><th>S. No</th><th>Details in ITR</th><th colspan="3">M/s Haldiram Snacks Pvt Ltd. (PAN: AAACH0061R)</th></tr><tr><th></th><th></th><th>AY-2023-24</th><th>AY-2022-23</th><th>AY-2021-22</th></tr><tr><td>1</td><td>Total Income (In Rs.)</td><td>8,57,66,21,950</td><td>4,82,16,99,020</td><td>5,25,32,03,420</td></tr><tr><td>2</td><td>Total Taxes Paid (In Rs.)</td><td>2,17,69,76,681</td><td>1,22,30,26,174</td><td>1,36,31,38,451</td></tr></table></td></tr>
<tr><td>9.</td><td>Whether the proposed scheme will have any impact of exemption of capital gain tax?</td><td>Not applicable</td></tr>
<tr><td>10.</td><td>Whether proposed scheme will have any impact of exemption of dividend distribution tax?</td><td>Not applicable</td></tr>
</table>

As per the scheme of arrangement of demerger, (clause 10.1) M/s Haldiram Snacks Pvt. Ltd. shall be liable to any tax payable prior& post to this scheme of demerger in respect of FMCG business of the assessee. The FMCG business of the assessee company accounts for approx. 93% of the total turnover of the assessee. Hence, M/s Haldirams Snacks Pvt. Ltd. will experience a significant reduction in its turnover, with revenues decreasing by approximately 93%**post demerger**. From the clause 10.1, it appears that post demerger, all M/s Haldiram Snacks Pvt. Ltd. (having PAN:AAACH0061R) shall be liable for all the demand including FMGG Business etc. (as per scheme of demerger). Additionally, it is important to note that proceedings under section 148 of the Income Tax Act are also pending for the Assessment Year 2016-17.

As per the provisional unaudited standalone balance sheet as on 01.04.2024 filed by the assessee before the Regional Director, North, Ministry of Corporate affairs through email dated 20.09.2024, the total assets of M/Haldiram Snacks Pvt. Ltd. will be Rs. 2598.82 Crores which includes cash and cash equivalent of Rs. 598 Crores.

In view of the above, claim of department of the outstanding demand and case status as above may kindly be taken into the consideration.

a) The response has been filed by the Petitioner No. 1 vide diary no. 01059/7 dated 26.09.2024 wherein it is submitted as under:

4. Pursuant to the above, the response to outstanding demands for respective years is given below:

Sr. No.	A.Y.	Demand (INR)	Our Response
1	2014-15	1,80,431/-	*The Petitioner No. 1 is in receipt of has assessment order under section 153C of the Income tax Act, 1961 ('ITA'). As per the said order, the demand is nil and the amount of INR 1,80,431/- is erroneously reflecting on the income tax portal. Copy of the said order is herewith attached and marked as* ***Annexure C***.
2	2019-20	46,18,925/-	*The Petitioner No. 1 has filed an appeal to the Commissioner of Income-tax (Appeals) against this demand and the matter will be taken up in accordance with the relevant provisions of the ITA. Copy of the said appeal is herewith attached and marked as* ***Annexure D***.
3	2020-21	26,99,75,030/-	*The Petitioner No. 1 has filed an appeal to the Commissioner of Income-tax (Appeals) against this demand and the matter will be taken up in accordance with the relevant provisions of the ITA. Copy of the said appeal is herewith attached and marked as* ***Annexure E***.

5. It is stated that the Petitioner No. 1 will assess its liability (if any) based on the outcome of the above-mentioned Appeals/litigation and will accordingly act once the matter is disposed of to the satisfaction of the Petitioner No. 1 by the relevant authority, in accordance with law.

6. Notwithstanding the above, Petitioner No. 1 undertakes that if any demand in relation to the above dues arises in accordance with the provision of the ITA and the rules thereof, the Petitioner No. 1 will pay off such demand as and when the claim is crystalized.

7. It is further stated that upon the Scheme becoming effective, Petitioner No. 1 will not cease to exist and will have sufficient assets which, will be more than INR 2,000 crores post demerger, to discharge its liabilities, if any on account of the above demands. It is further respectfully stated that sufficiency of the assets (post demerger) of the Demerged Company 1, for paying off tax liabilities if any, has been acknowledged by the Income Tax Department in the Income Tax Reply.

b) In the hearing held on 27.09.2024, this Tribunal observed from the report of ITD of Petitioner No. 1 that its FMCG business accounts for 93% of total turnover and thus there will be significant reduction in its turnover with revenue decreasing approximately 93% post-demerger. In view of the above, Learned Counsel for the Petitioner Companies was directed to place on record the complete audited financial statement of Petitioner No. 1, for the year ended on 31.03.2024 along with its bifurcation into business remaining with the demerged Company and getting transferred to the Resulting Company. The Petitioner Companies were also directed to place on record the Post-Demerger Net Worth Certificate of both the Demerged Company and Resulting Company within one week. The affidavit was filed by the Petitioner Companies vide diary no. 01059/10 dated 23.10.2024, was taken on record by this Tribunal vide order dated 06.12.2024.

iii. <u>In the case of Petitioner No. 2</u>

a) The office of the Assistant Commissioner of Income Tax, Mumbai vide its letter number ACIT-Cir.2(1)(1)/NCLT/AAACH3628L/2023-24 lodged their claim before this Tribunal for an amount of Rs. 40,37,92,644/- vide diary number 733 dated 12.03.2024. The Petitioner No. 2 filed vide diary no. 01059/1 dated 04.07.2024 for placing on record its affidavit in response to the claim filed by the ITD. Pursuant to which the ITD filed its report vide diary no. 01059/4 dated

22.08.2024, in which it is also stated that ITD has given 'No Objection' with respect to the approval of the present Scheme.

3. In view of the above, this office has no objection to the said scheme of arrangement under s. 230 to 232 read with section 68 of the Companies Act 2013 read with Companies (Compromises, Arrangements, Amalgamation Rules 2016 through CP No. 10/CHD/HRY/2024.

Yours sincerely,

(P. K. Vinod Kumar)
Assistant CIT – 2(1)(1), Mumbai

iv. In the case of Petitioner No. 3

a) The office of the ITD has given 'No Objection' with respect to the approval of the present Scheme.

Further, the status report with respect to M/s Haldiram Snacks Food Pvt. Ltd. (PAN: AAGCH6000C), is submitted as under:-

(i). Details of ITR filed by the company: -

Sl. No.	Particulars	A.Y,	Date of Filing of Return	Return of Income (in Rs.)	Deemed Income (in Rs.)	Refund (In Rs.)
1.	**Details of ITR filed by the company**	2023-24	30.09.2023	0	0	0
		2022-23	As per data available on CPC 2.o portal, the assessee had filed only ITR for the A.Y 2023-24			
2.	**Whether any dues are pending**	As per data ITBA Recovery module, no dues are pending in this case.				
3.	**Whether any proceedings are pending**	As per data available on ITBA System, no proceedings in the case are pending with this office i.e. Jurisdiction Ward-1(4), Gurugram				
4.	**Whether transaction of disproportionate value were under taken by the company**	As per the details available on e-filing portal, in accordance with the latest ITR filed by the assessee for the AY 2023-24, it is noticed that the company had shown total value of assets of NIL and long term borrowings of Rs. NIL. Gross receipts of the company was NIL.				
5.	**Whether huge cash deposits are found in their account**	As per 360 degree, This office cannot access these details as no case is selected in scrutiny or AIMS in this case.				

6.	**Whether company's bank accounts have been used for money laundering and tax evasion**	

In view of above discussion, this office has no objection to the proposal.

Yours faithfully,

(Rajiv Bhatia)
Income Tax Officer
Ward-1(4), Gurugram

12.3. The Petitioner Companies vide diary no. 1059/9 dated 27.09.24 for Petitioner No. 1 and diary no. 01059/11 dated 23.10.2024 for Petitioner No. 2 and 3, filed the no objection letter received from the Food Safety and Standards Authority of India.

13. Upon sanctioning of the Scheme the transferee company will issue equity shares to the shareholders of the transferor company in the following ratio:

- ***To the shareholders of Demerged Company No. 1:***
  "2,538 (Two Thousand Five Hundred and Thirty-Eight) equity shares of INR 10 each fully paid up of Haldiram Snacks Food Private Limited to be issued for every 100 (One Hundred) equity shares of INR 10 each fully paid up held in Haldiram Snacks Private Limited"
- ***To the shareholders of Demerged Company No. 2.***
  "5,594 (Five Thousand Five Hundred and Ninety-Four) equity shares of INR 10 each fully paid up of Haldiram Snacks Food Private Limited to be issued for every 100 (One Hundred) equity shares of INR 10 each fully paid up held in Haldiram Foods International Private Limited"

(Equity Shares issued pursuant to above Clause shall be collectively referred to as New Equity Shares)

14. It has been submitted by the Learned Counsel appearing for the Petitioner Companies that Scheme is not prejudicial to the interest of the equity shareholders, the creditors of the Petitioner Companies or public at large. It is further submitted that the Scheme will be beneficial to the Petitioner Companies and their respective shareholders.

15. The certificate of the Statutory Auditor with respect to the Scheme between Petitioner Companies to the effect that the accounting treatment proposed in the Scheme is in compliance with applicable Indian Accounting Standards (Ind AS) as specified in Section 133 of the Act, read with rules thereunder and other Generally Accepted Accounting Principles was filed as Annexure X-1 to X-3 to the Petition.

16. The Petitioner Companies filed an application bearing COMP.APPL/23(CH)/2025 dated 05.02.2025, praying for amending the Scheme to delete Clause 14 of the Scheme, pertaining to change of name of Petitioner No. 1 and Petitioner No. 3, primarily due to an observation by the Petitioner companies that since the Petitioner companies operate in the FMCG sector, implementing a name change would lead to increased costs, procedural hassles resulting into significant delays, obtaining regulatory approvals. The copy of Board Resolutions of Petitioner Companies approving the deletion of Clause 14 of the scheme are annexed as Annexure A1, A2, A3 to the COMP.APPL/23(CH)/2025. The Petitioner Companies have prayed for sanctioning of the amended Scheme which is attached as Annexure B to the COMP.APPL/23(CH)/2025.

17. We have heard the learned Counsel for Petitioner Companies and learned Counsel for the Income Tax Department as well as Company Prosecutor for the Regional Director and perused the record carefully.

18. In the context of the above discussion, the Scheme contemplated between the Petitioner Companies appears to be prima facie in compliance with all the requirements stipulated under the relevant Sections of the Companies Act, 2013. In the absence of any objections before us and the requisite statutory compliances having been fulfilled, this Tribunal allows the COMP.APPL/23(CH)/2025 by granting approval for deletion of Clause 14 of the scheme.

19. Notwithstanding the submission that no investigation is pending against the Petitioner Companies, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

20. While approving the Scheme, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including Income Tax, GST, etc., or any other charges if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law.

21. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the scheme and if it is found that the scheme of arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of the Income Tax Act, then the Income Tax Department shall be at liberty to initiate appropriate course of action in accordance with the law. Any sanction of the scheme of arrangement under section 230-232 of the Companies Act, 2013 shall not adversely affect the rights of the Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

THIS TRIBUNAL DO FURTHER ORDER:

i. The amended scheme of arrangement envisaging the demerger of FMCG business of the Petitioner No. 1 and Petitioner No. 2 into Petitioner No. 3 annexed as "Annexure B" to the COMP.APPL/23(CH)/2025 is hereby sanctioned and it is declared that the same shall be binding on the petitioner companies and their shareholders and creditors and all concerned under the scheme.

ii. That all the property, rights and powers of the Demerged Companies pertaining to the Demerged Undertakings be transferred, without further act or deed, to the Resulting Company and accordingly, the same shall pursuant to Sections 230 to 232 of the Act, be transferred to and vested in the Resulting Company for all the estate and interest of the Demerged Companies pertaining to the Demerged Undertakings but subject nevertheless to all charges now affecting the same;

iii. That all the liabilities and duties of the Demerged Companies pertaining to the Demerged Undertakings be transferred, without further act or deed, to the Resulting Company and accordingly the same shall pursuant to Sections 230 to 232 of the Act, be transferred to and become the liabilities and duties of the Resulting Company;

iv. That all contracts of the Demerged Companies pertaining to the Demerged Undertakings which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Resulting Company and be in full force and effect in favour of the Resulting Company and may be enforced by or against it as fully

and effectually as if, instead of the Demerged Companies pertaining to the Demerged Undertakings, the Resulting Company had been a party or beneficiary or obliged thereto;

v. That all the employees of the Demerged Companies pertaining to the Demerged Undertakings shall be deemed to have become the employees and the staff of the Resulting Company with effect from the Appointed Date, and shall stand transferred to the Resulting Company without any interruption of service and on the terms and conditions no less favourable than those on which they are engaged by the Demerged Companies pertaining to the Demerged Undertakings, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

vi. That the Appointed Date for the Scheme shall be 01.04.2024, as specified in the Scheme;

vii. That the Resulting Company shall, without further application, allot to the existing members of the Demerged Companies shares of the Resulting Company to which they are entitled under the said Scheme;

viii. The Petitioner Companies are directed to file a certified copy of this Order along with the copy of Scheme with the concerned Registrar of Companies, electronically along with e-form INC-28 in addition to a physical copy in e-form INC-28 within 30 days or an extended timeline with payment of additional fees, as may be applicable, from the date of receipt of the Order. The Scheme will become effective on filing of the copy of this order with the concerned Registrar of Companies.

ix. All concerned Authorities are directed to act on a copy of this order along with the Scheme authenticated by the Designated Registrar of this Tribunal.

x. The petitioner companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of the petitioner transferor company, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

xi. The legal fees and expenses of the office of the Regional Director are quantified at Rs. 20,000/- with respect to each of the petitioner companies. The said fees to the Regional Director shall be paid by the petitioner resulting company.

xii. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs. 20,000/- with respect to each of the petitioner demerged company. The said fees to the Official Liquidator shall be paid by the respective demerged petitioner companies.

xiii. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

22. As per the aforesaid directions, formal orders in Form No. CAA-7 of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 be issued after filing of the Schedule of Properties i.e., (i) freehold properties of the Demerged Companies; and (ii) leasehold properties of the Demerged Companies, after receiving a certified copy of this order by the petitioners.

23. The Company Petition CP(CAA)No.10/CHD/HRY/2024 is allowed and disposed of accordingly

24. The certified copy of this order, if applied for, be supplied to the parties, subject to compliance with all requisite formalities.

Sd/- Sd/-

(Kaushalendra Kumar Singh)
Member (Technical)

(K. Biswal)
Member (Judicial)

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